

parties agreed on February 18, 2026 for the vehicle inspection, but Defendant's expert got sick and could not attend.

Defendant now moves for an order compelling Plaintiff to produce her Vehicle for inspection and seeks \$980 in sanctions.

In a limited opposition, Plaintiff argues that the inspection occurred on May 15, 2026, so the motion is moot, and Defendant agreed to take the motion off calendar, then failed to do so.

Analysis

Pursuant to C.C.P. § 2031.010(a) "[a]ny party may obtain discovery ... by inspecting, copying, testing, or sampling documents, tangible things, land or other property, and electronically stored information in the possession, custody, or control of any other party to the action." A party may demand that any other party allow the party to enter on any land or other property that is in the possession, custody, or control of the party on whom the demand is made, and to inspect to measure, survey, photograph, test, or sample the land or other property, or any designated object or operation on it. (C.C.P. § 2031.010(d).) Additionally, pursuant to C.C.P. § 2031.020(a), "[a] defendant may make a demand for inspection, copying, testing, or sampling without leave of court at any time." If the responding party fails to serve a timely response to an inspection demand, the demanding party may move to compel a response. (C.C.P. § 2031.300(a).)

In the present case, Plaintiff contends that the inspection of her Vehicle occurred on May 15, 2026. Defendant does not dispute this. As the inspection already occurred, this motion is moot. Furthermore, there are no grounds for sanctions. Accordingly, the motion is denied.

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CASE #	CASE NAME	HEARING NAME
CVRI2503513	COUNTY OF RIVERSIDE VS TSC STATION LLCJONES	MOTION FOR PRELIMINARY INJUNCTION

Tentative Ruling:

The Motion for Preliminary Injunction is unopposed. Accordingly, the motion is granted. The Court has signed the submitted proposed Order. Moving party to give notice of ruling.